

CV-26-000602 NORFORD, LEON vs MOUNTAIN VIEW SECURITIES INC - Defendant Mountain View Securities Inc.'s Motion to Compel Individual Arbitration and to Stay the Non-Individual Private Attorney's General Act Claim Pending Completion of Arbitration - DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: Defendant has not met its burden to prove Plaintiff assented to the subject arbitration agreement. Defendant's submission of an unsigned agreement and an ADP acknowledgment record, even while supported by evidence purportedly authenticating attribution of the electronic acknowledgment to Plaintiff, is insufficient to establish Plaintiff's assent to the contract terms under California law. Because Defendant has not shown an agreement to arbitrate, the Court does not reach Plaintiff's alternative enforcement defenses. The following are the tentative rulings for cases calendared before Judge David Hood in Department 24:

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